



Trinity College Dublin
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[The University of Dublin](#)

Describing Meaning - Week 10: Aktionsart

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Immigration Law Again

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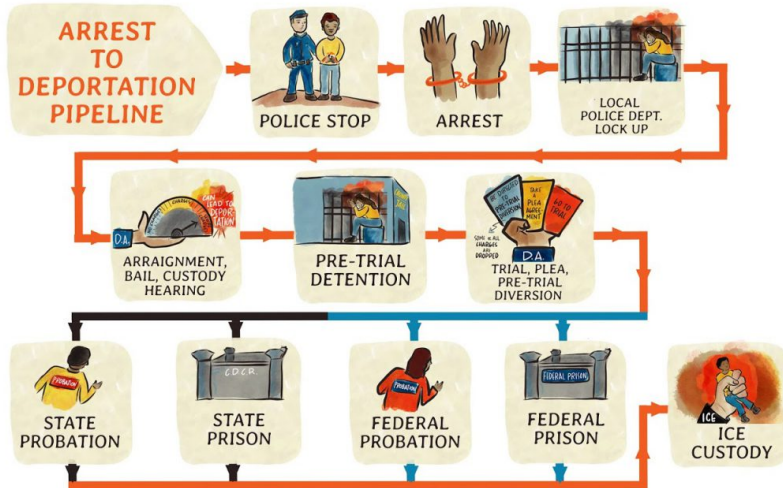
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- The case concerned Mony Preap, an immigrant to the US who was arrested in 2013 under US Code Section 1226(c).
- US Code Section 1226(c) is a law passed in 1996 by the Clinton administration to expedite the process of deporting *criminal aliens*.
- The application of it was increased under the Obama administration, and much more dramatically so under the first Trump administration.

US Immigration Law



Visual: Claudia Lopez

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- Mony Preap was born in Cambodia and immigrated to the US legally in 1981.
- At some point later he served a number of years in prison for possession of marijuana, ending in 2006.
- In 2013 he was taken into federal custody under US Code Section 1226(c).

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 - (B) is deportable by reason of having committed any offense covered in section 1227(a)(2)(A)(ii), (A)(iii), (B), (C), or (D) of this title,
 - (C) is deportable under section 1227(a)(2)(A)(i) of this title on the basis of an offense for which the alien has been sentenced to a term of imprisonment of at least 1 year, or
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 - (C) is deportable under section 1227(a)(2)(A)(i) of this title on the basis of an offense for which the alien has been sentenced to a term of imprisonment of at least 1 year, or
 - (D) is inadmissible under section 1182(a)(3)(B) of this title or deportable under section 1227(a)(4)(B) of this title,
- **when the alien is released**, without regard to whether the alien is released on parole, supervised release, or probation, and without regard to whether the alien may be arrested or imprisoned again for the same offense.

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- What does **when** mean here?

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- Yes, *when* can have either meaning, but “*when* typically connotes immediacy; that’s the primary dictionary definition.”

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- The meaning of **when** matters:
- If it means “at any point after release”, then it applies to Preap’s case (and thousands of others like him).
- If, however, it means “at roughly the same time as”, then it would be extremely unreasonable to understand 7 years later as “roughly the same time”.
- As it turns out, the meaning of *when* is not ambiguous in a simple lexical way: it depends on the *class of eventuality* described in the verb.

The Majority Opinion

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 - A non-citizen does not become exempt from mandatory detention under 8 U.S.C. 1226(c) through failure of the Secretary of Homeland Security to take him into immigration custody *immediately upon* release from criminal custody.

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These three features give us the classic four-way distinction.

The four classes

Class	Static	Durative	Telic
State	+	+	—
Activity	—	+	—
Accomplishment	—	+	+
Achievement	—	—	+

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- This means we can characterise the part-whole structure of events in terms of lattices too!

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Roles and structure

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